ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	168th Commission Meeting
DATE:	13 March 2024
TIME:	02:00 PM
VENUE:	*Druk Dradhir Khang*

#	AGENDA & DISCUSSION	DECISION
1	Regular HR update – HRS *Chairperson of the HRC appraised the Commission on the 138th HRC meeting as follows:* • *update on the recruitment and selection of the two Legal Officers for the LD.* • *approval of resignation submitted by Karma Phuntsho & Kezang Tshering.* • *nomination of Sangay Lhamo, ADMD, DoPE & Chhimi Rinzin, EMD, DoPS to attend the workshop on 'integration of BIRMS with G2C System'.* • *endorsement of Foundational Intelligence Training for DARe.* • *adoption of HR Dashboard developed by Director General, DoI to facilitate informed decision making in the HRC.* • *endorsement of application submitted by five officials to attend Summer Camp Training conducted at IACA, Austria.* • *recommendation to refer the appeal submitted by Gyanu Maya Ghalley, ESP of ROPL for salary revision to the Commission for consideration.* • *recommendation to refer the appeal submitted by Choiten Wangmo for Education loan for her children from the Endowment Fund.*	**Noted with the following specific directives:** • **include agenda and minutes in the HR Dashboard.** • **provide access to the dashboard to the Commission and all the HRC members.** • **explore training on electronic Government Procurement to those officials involved in procurement related activities including bid opening, evaluation, and award.** • **review the process of issuing recommendations to those ex-officials including a standard criterion and accordingly recommend appropriate process.** • **ROPL to present on the overall revenue collection status and accordingly decide way forward.** • **review and present endowment fund disbursement status.**
2	Final Draft Internal Transfer Policy – HRC *Chairperson of the HRC presented the final draft Internal Transfer Policy and Procedure*	**Commission directed to further enrich the draft with following specific directives:**

	for Commission's comments and directives. The draft was developed after rigorous consultation with the Departments/Departmental Divisions/Regional Offices concerned. *Detailed PowerPoint slides attached.*	• **include the need to further enhance and expand services as necessary as one of the objectives of the policy.** • **include exceptions on the criteria requiring minimum of three years of service in the current position, considering the interest of the agency including the transfer to Regional Offices.** • **include disciplinary actions or performance issues as also one of the criteria, allowing the Management to initiate internal transfer.** • **highlight that internal transfer should not be understood as a matter of right and ensure that criteria include broad areas such as transfer based on the need of the agency, suitability of individuals to specific functions/services, security vulnerability of staff, among others, providing agility while implementing as deemed required.** • **exclude provisions related to the professional allowance from the policy.** • **exclude provisions related to facilitating transfer of spouses from the policy considering the inherent challenges. Nonetheless, the agency can always make conscious efforts.** • **start working on the list of officials for regional transfer.**
3	Final draft content and schedule for the mandatory training – HRC *Chairperson of the HRC presented on the final draft mandatory training schedule for endorsement.*	**Endorsed the training program and directed to postpone the training to 15 April 2024 so that those new recruits who are undergoing FIT program at the RIM can also be included.**
4	Draft Gift Rule Questionnaire – LD *LD presented on the draft survey questionnaire to be floated to all the GDAs to solicit comments and feedback on the overall implementation and management of the Gift Rules 2017.*	**Endorsed the questionnaire with following specific directives:** • **exclude requirement of respondent's name and agency to encourage openness.** • **include definition of 'gifts' in the beginning of the questionnaire to**

		provide common understanding among the respondents. • **include option towards the end of the questionnaire asking whether there is need of Gift Rule or not?** • **seek suggestion from the respondents on some of the important elements expected of the Rule.** • **float the survey to those officials in the public sector and keep it open for about three weeks.** **In addition, directed LD to prepare a brief write-up on the UNCAC and its related activities for reference during the OECD event.**
5	E-Learning course for Civil Servants – DoPE *ED apprised that as of 11 March 2024, from the total of more than 4000 individuals enrolled into the course, majority is comprised of civil servants wherein 2756 (2190 completed) and 3287 (2182 completed) enrolled into Level 1 & 2 respectively. Further analysis on the feedback received reveal positive feedback, highlighting the need to expand the scope of the course to other positions in the civil service. Some of the suggestions for enrichment included the need to revisit the duration of the course, address network issues, bilingual content, among others.* *Building on the existing momentum, ED presented the proposal to roll out Level 1 E-Learning course for the civil servants in the agriculture & livestock (193), healthcare services (542) and JDWNRH (365) from March-May 2024. The prioritization is based on the findings of the scoping study conducted by the EAD. Furthermore, to encourage agencies including those taking proactive measures, ED proposed to provide additional points in the OIP score.*	**Endorsed the plan and directed to continue updating the case studies and data.**
6	Update on stakeholder consultation meeting on National M&E Framework – PPD *PPD apprised on the stakeholder consultation on National M&E Framework, wherein the ACC submitted to include 'Good Governance' as one of the primary aspects of M&E framework. This is not only expected to provide continuity to the ongoing anti-*	**Noted**

	corruption initiatives in the country but also ensure sustainability. *Additionally, PPD apprised on the two-day Workshop on 'Data Governance' organized by the GovTech Agency in collaboration with the UNDP, which was attended by about 40 officials from various agencies. The workshop was aimed to garner inputs for the development of national-level data governance policy to drive data-based planning, monitoring, and evaluation.*	
7	Resolutions of the 10th Session of the 3rd Parliament & 32nd Session of NC – PPD *PPD apprised on the implementation status of the resolutions passed during the 10th Session of the 3rd Parliament & 32nd Session of NC as follows:* • ***Engage media in public education and take it to the grassroot to enhance inclusiveness and better inform communities****: Engaged media during the NACD, conducted thematic sessions for the LG officials, and continues to optimize media and innovation lab to enhance public outreach programs.* • ***ACC, RCSC & Lead Cluster Agencies to review the impact of clustering initiatives on ACC and exclude ACC in clustering of legal services & ICT Services****: Either write to the RCSC to accord consideration while clustering remaining common services or include provisions to address such issues during the renewal of MoU with the RCSC.* • ***MoF & ACC to explore best alternative budget allocation mechanism for the ACC and ensure adequate financial resources for capacity development of ACC staff****: PPD & LD to work on a proposal for discussion/submission to the MoF or Cabinet before the budget discussion and finalization.* • ***The NA & NC through its relevant Standing Committees to scrutinize the delayed resolution of cases and address institutional challenges****: Enhance coordination among ACC, OAG and RCoJ as also included in*	**Noted with following specific directives:** • **addressing issues related to clustering of common services to be included in the MoU with the RCSC and also highlighting the agreements reached with the GovTech Agency and MoF regarding clustering of ICT and finance services from the security and confidentiality of data perspective.** • **make reference to the session with the Hon'ble Prime Minister on 13 February 2024 regarding the budget while preparing the proposal for sustainable budget. Also, include figures in the proposal to show investment requirement trends in the coming years.** • **LD to conduct a review to determine the legal bindingness of the Parliament's resolutions and accordingly inform during the upcoming Annual Report presentation.** • **DoPS to conduct comprehensive consolidation of data related restitution of corruption proceeds from 2006 till date on a project mode, with the aim to finalize by May 2024. The data must include amount involved in a case, amount of restitution prayed after investigation, restitution awarded by the Courts, restitution enforced by the OAG, restitution pending, and administrative sanctions.** • **PPD to share a format to ensure**

	the JSSP. • ***ACC to report on restitution details from 2006-2023 in the next Annual Report**: CFD, DoPS to start preparing details on restitution including reconciliation of data as reported in the earlier Annual Reports.*	**comprehensiveness of the data.**
8	Review of the effectiveness of QSM – PPD *PPD presented the findings of the review conducted to assess the effectiveness of the QSM, wherein 84 staff participated in the online survey. Based on the feedback received, PPD recommended to conduct the meeting biannually and separately at the Head Office and Regional Offices, with of the meetings each year planned to be in-person.*	**Directed to optimize the upcoming QSM on 8 April 2024 to further seek inputs and accordingly decide.**
9	Regional Seminar of ADB/OECD Anti-Corruption Initiative for Asia and Pacific – PPD *PPD presented that the total estimated budget for hosting the upcoming Regional Seminar of ADB/OECD Anti-Corruption Initiative for Asia and the Pacific is Nu.8.819 million. The cost includes Nu.1.628 million for event management/chadri, Nu.2.655 million for catering, Nu.2.500 million for closing & welcome dinners, Nu.0.606 million for event promotion/communication, Nu.0.915 million for stationaries & printing, Nu.0.515 million for transportation & other miscellaneous expenses. The above costing was based on the expenditure incurred during the last event hosted in 2016.* *While the cost for the above event might seem substantial, the return on investment is significant. With three parallel programs happening on PIN, BIN & LEN, over 90 delegates from 34 member countries/territories are expected to attend, generating foreign currency remittance of approximately USD 194,250.00 (Nu.16,317,000.00), not including the indirect revenue. Furthermore, since Bhutan hosted the event in 2016, more than 25 officials from the ACC attended various programs, receiving financial sponsorships totaling about Nu.2.1 million.*	**Endorsed the budget estimate and directed to explore event venues (CBS, RIM, GCIT, etc.) to minimize the cost.**
10	Technical Assistance on Intelligence & Surveillance from MACC – PPD *PPD apprised on the request to coordinate a*	**Directed to maintain the communication without formally committing and explore with the CPIB during the upcoming**

	field attachment for the DARe officials on intelligence and surveillance at the MACC given its past trend of accommodating such request. The primary objective of the visit is to benchmark the existing practices and strengthen internal procedures and manuals. While informally contacting the MACC for the field attachment, PPD was informed positively and asked to send an email to process the request.	**experience sharing visit.**



Commissioner



Commissioner



Chairperson

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